
Rule 35 **Sick Leave**

A. Policy. Sick leave may be granted by the City for the following purposes: diagnosis, care, or treatment of an existing health condition of, or preventative care for, an employee or any of the following of the employee's family members: child of any age or dependency status; parent; parent-in-law; spouse; registered domestic partner; grandparent; grandchildren; or sibling; or for an employee who is a victim of domestic violence, sexual assault, or stalking to: i) obtain or attempt to obtain a temporary restraining order or other court assistance to help ensure the health safety or welfare of the employee or his or her child; or ii) obtain medical attention or psychological counseling; services from a shelter; program or crisis center; or participate in safety planning or other actions to increase safety.

B. Definition. For purposes of this Rule, an employee's "immediate family" shall consist of an employee's spouse, mother, father, brother, sister, half-brother or sister, children, step-children, grandparents, grandchildren, mother/father in-law, son or daughter in-law, brother or sister in-law, foster children or legal wards and legal guardians, domestic partner and same relatives listed of a domestic partner.

C. Accrual. All full-time regular employees shall accrue paid sick leave at the rate of eight (8) hours per month (ninety-six [96] hours per year) or major fraction thereof for each calendar month of paid status. All other employees who work 30 or more days within a year from the commencement of employment with the City accrues one hour of paid sick leave for every 30 hours worked. Sick leave shall not be accrued by an employee during a City authorized leave of absence without pay or any other unpaid absence from duty not authorized by the City.

D. Holidays During Sick Leave. Observed holidays occurring during sick leave shall not be charged against an employee's accrued sick leave.

E. Supervisory Discretion to Relieve Employees from Duty. Supervisors shall have the discretion, with concurrence of the Human Resources Director, to place employees on sick leave when, in the reasonable judgment of the supervisor, the presence of the employee at work would endanger the health and welfare of other employees or where the illness or injury of the employee interferes with the performance of such employee's duties.

F. Sick Leave Accrued Limit. Any unused portion of accumulated sick leave may be carried over into the next calendar year, provided, however, an employee's accumulated sick leave may not exceed nine hundred sixty (960) hours unused sick leave; further accumulation shall not be allowed.

G. Unused Sick Leave. Any unused portion of accrued sick leave may, at the employee's election, be credited to the employee's PERS account upon retirement for additional service credit.

H. Certification. Abuse of sick leave may be grounds for discipline. Should the City suspect that there is abuse of sick leave by the employee, the employee may be required to provide a medical certification from a licensed health care provider of the need for leave to the Department Director for review and consideration.

I. Effect of Absence on Vacation Leave. Absence due to sick leave or other approved paid leave of absence will not affect computations for vacation leave, unless such absences exceed one (1) month, in which case, that absence shall be excluded from sick leave accrual. Sick leave shall not be granted to allow any employee to permit the extension of the employee's vacation.

J. Sick Leave Use - General Rules and Procedure. When an employee is incapacitated from the performance of his/her duties for reasons that entitle him/her to the use of sick leave not otherwise governed or restricted by the Family Medical Leave Act ("FMLA"), the California Family Rights Act ("CFRA") or other applicable State or Federal law, the following rules shall apply:

1. To request to use sick leave if the need for leave is foreseeable, an employee must give the immediate supervisor reasonable advance written or oral notice. If the need for paid sick leave is unforeseeable, the employee shall provide notice of the need for the leave as soon as practicable. The employee should make his/her best effort to notify his/her supervisor within thirty (30) minutes of the beginning of the work day that the employee is absent.

2. An employee shall be responsible for informing his/her supervisor of his/her health status until he/she returns to work.

3. Upon returning to work, each employee must submit a completed Personnel Action form approved by the supervisor and forwarded to the Finance Department.

4. Sick leave benefits may be taken in one-quarter (1/4) hour increments.

5. An employee who is absent on sick leave for more than one (1) day shall keep his/her immediate supervisor informed as to the date the employee expects to return to work.

6. Sick leave shall not be granted to any employee absent from duty after separation from City service, or during a City authorized leave of absence without pay, or any other absence from duty not authorized by the City.

7. When approved in advance, paid sick leave may be used to attend medical, dental or optical examinations or treatments, to the extent such appointments cannot be scheduled outside the work day.

8. An employee on sick leave must exhaust all other available paid leaves, including, but not limited to, vacation leave, before sick leave may be taken without pay. This provision shall not apply to accrued compensatory time off.

9. Sick leave shall run concurrently with all other health-related but non-sick leave benefits, including, but not limited to, leave for work related injuries.

10. Sick leave shall be limited to one (1) of the following:

a. Sick leave which does not qualify for benefits under the FMLA, CFRA, or other applicable State or Federal law, shall be limited to the paid time accrued or authorized to be used pursuant to these Rules; or

b. Sick leave which qualifies for benefits under the FMLA, CFRA or other applicable State or Federal law, as provided under Rule 37 (Family and Medical Care Leaves) hereof.

11. Leave qualifying under the FMLA, CFRA or other applicable State or Federal law for the employee's own serious health condition shall be exhausted concurrently with accrued paid sick leave or other sick leave qualifying under this sick leave policy.

K. Return to Work: Fitness for Duty Certification.

1. As a condition of reinstatement of an employee returning to work following an illness, injury or disability, the employee must obtain and present a fitness-for-duty certification from a health care provider stating that the employee is able to resume work. Failure to provide such certification will result in denial of reinstatement.

2. Employees may be required to periodically report on their status and intent to return to work.

Rule 36 **Family and Medical Care Leaves**

A. Reasons for Leave. Leave is only permitted for the reasons listed below.

1. The birth of a child or to care for a newborn of an employee;

2. The placement of a child with an employee in connection with the adoption or foster care of a child;

3. Leave to care for a child, parent, spouse, or domestic partner who has a serious health condition;

4. Leave because of a serious health condition that makes the employee unable to perform any one or more essential functions of his/her position;

5. Leave for a variety of "qualifying exigencies" arising out of the fact that an employee's spouse, son, daughter, or parent is on active duty or call to active-duty status in the National Guard or Reserves in support of a contingency operation; or

6. Leave to care for a spouse, son, daughter, parent, or "next of kin" who is a covered servicemember of the U.S. Armed Forces who has a serious injury or illness: incurred in the line of duty while on active military duty; or existed before the beginning of the member's

active duty and was aggravated by service in the line of duty on active duty in the Armed Forces. This leave can run up to 26 weeks of unpaid leave during a single 12-month period.

B. Concurrent Running of FMLA and CFRA Leaves. The City provides family and medical care leave for eligible employees as required by State and federal law. Employees who misuse or abuse family and medical care leave may be disciplined up to and including termination. Employees who fraudulently obtain or use CFRA leave are not protected by the CFRA's job restoration or maintenance of health benefits provisions. This Policy is supplemented by the Federal Family and Medical Leave Act ("FMLA"), and the California Family Rights Act ("CFRA"). Unless otherwise stated in this Policy, "Leave" means leave pursuant to the FMLA and CFRA. Unless otherwise provided by law, the City will run each employee's FMLA and CFRA leaves concurrently.

C. Definitions.

(a) "12-Month Period" means a rolling 12-month period measured backward from the date leave is taken and continuous with each additional leave day taken.

(b) "Single 12 Month Period" means a 12-month period which begins on the first day the eligible employee takes FMLA leave to take care of a covered servicemember and ends 12 months after that date.

(c) "Child" means a child under the age of 18 years of age, or 18 years of age or older who is incapable of self-care because of a mental or physical disability. An employee's child is one for whom the employee has actual day-to-day responsibility for care, and includes a biological, adopted, foster or stepchild. A child is "incapable of self-care" if he/she requires active assistance or supervision to provide daily self-care in three or more of the activities of daily living or instrumental activities of daily living, such as caring for grooming and hygiene, bathing, dressing and eating, cooking, cleaning shopping, taking public transportation, paying bills, maintaining a residence, or using telephones and directories.

(d) "Parent" means the biological parent of an employee or an individual who stands or stood in loco parentis (in place of a parent) to an employee when the employee was a child. This term does not include parents-in-law.

(e) "Spouse" means one or two persons to a marriage, regardless of the sex of the persons, and for purposes of CFRA leave, includes a registered domestic partner as defined below.

(f) "Domestic Partner" is another adult with whom the employee has chosen to share their life in an intimate and committed relationship of mutual caring and with whom the employee has filed a Declaration of Domestic Partnership with the Secretary of State, and who meets the criteria specified in California Family Code section 297. A legal union formed in another state that is substantially equivalent to the California domestic partnership is also sufficient.

(g) “Serious Health Condition” means an illness, injury impairment, or physical or mental condition that involves:

1) Inpatient Care in a hospital, hospice, or residential medical care facility, including any period of incapacity (e.g., inability to work or perform other regular daily activities due to the serious health condition, treatment involved, or recovery therefrom). A person is considered “inpatient” when a health care facility admits him or her to the facility with the expectation that he or she will remain at least overnight, even if it later develops that such person can be discharged or transferred to another facility, and does not actually remain overnight; or

2) Continuing treatment by a health care provider: A serious health condition involving continuing treatment by a health care provider includes any one or more of the following:

a. A period of incapacity (i.e., inability to work, or perform other regular daily activities) due to serious health condition of more than three consecutive calendar days; and

b. Any subsequent treatment or period of incapacity relating to the same condition, that also involves:

i. Treatment two or more times by a health care provider, by a nurse or physician’s assistant under direct supervision by a health care provider, or by a provider of health care services (e.g., a physical therapist) under orders of, or on referral by a health care provider; or

ii. Treatment by a health care provider on at least one occasion which results in a regimen of continuing treatment under the supervision of the health care provider. This includes, for example, a course of prescription medication or therapy requiring special equipment to resolve or alleviate the health condition. If the medication is over the counter and can be initiated without a visit to a health care provider, it does not constitute a regimen of continuing treatment.

3) Any period of incapacity due to pregnancy or for prenatal care. Note that pregnancy is a “serious health condition” only under the FMLA. Under California law, an employee disabled by pregnancy is entitled to pregnancy leave.

4) Any period of incapacity or treatment for such incapacity due to a chronic serious health condition. A chronic serious health condition is one which:

a. Requires periodic visits for treatment by a health care provider, or by a nurse or physician’s assistant under direct supervision of a health care provider;

b. Continues over an extended period of time (including recurring episodes of a single underlying condition); and

c. May cause episodic rather than a continuing period of incapacity (e.g., asthma, diabetes, epilepsy, etc.). Absences for such incapacity qualify for leave even if the absence lasts only one day.

5) A period of incapacity that is permanent or long-term due to a condition for which treatment may not be effective. The employee or family member must be under the continuing supervision of, but need not be receiving active treatment by health care provider.

6) Any period of absence to receive multiple treatments (including any period of recovery therefrom) by a health care provider or by a provider of health care services under orders of, or on referral by, a health care provider, either for restorative surgery after an accident or other injury, or for a condition that would likely result in a period of incapacity of more than three consecutive calendar days in the absence of medical intervention or treatment.

(h) “Health Care Provider” means:

1) A doctor of medicine or osteopathy who is authorized to practice medicine or surgery in the State of California;

2) Individuals duly licensed as a physician, surgeon, or osteopathic physician or surgeon in another state or jurisdiction, including another country, which directly treats or supervises treatment of a serious health condition;

3) Podiatrists, dentists, clinical psychologists, optometrists, and chiropractors (limited to treatment consisting of manual manipulation of the spine to correct a subluxation as demonstrated by x-ray to exist) authorized to practice in California and performing within the scope of their practice as defined under California State law;

4) Nurse practitioners and nurse-midwives and clinical social workers who are authorized to practice under California State law and who are performing within the scope of their practice as defined under California State law;

5) Christian Science practitioners listed with the First Church of Christ, Scientist in Boston, Massachusetts; and

6) Any health care provider from whom an employer or group health plan’s benefits manager will accept certification of the existence of a serious health condition to substantiate a claim for benefits.

(i) “Covered active duty” means: 1) in the case of a member of a regular component of the Armed Forces, duty during deployment of the member with the Armed Forces to a foreign country; or 2) in the case of a member of the reserve component of the Armed

Forces, duty during the deployment of members of the Armed Forces to a foreign country under a call or order to active duty under certain specified provisions.

(j) “Covered Servicemember” means: 1) a current member of the Armed Forces, including a member of the National Guard or Reserves, who is undergoing medical treatment, recuperation, or therapy, is otherwise in outpatient status, or is otherwise on the temporary disability retired list, for a serious injury or illness; or 2) a veteran who is undergoing medical treatment, recuperation, or therapy, for a serious injury or illness and who was a member of the Armed Forces, including a member of the National Guard or Reserves, at any time during the period of five years preceding the date on which the veteran undergoes that medical treatment, recuperation, or therapy.

(k) “Outpatient Status” means, with respect to a covered servicemember, the status of a member of the Armed Forces assigned to either: (1) a military medical treatment facility as an outpatient; or (2) a unit established for the purpose of providing command and control of members of the Armed Forces receiving medical care as outpatients.

(l) “Next of Kin of a Covered Servicemember” means the nearest blood relative other than the covered servicemember’s spouse, parent, son, or daughter, in the following order of priority: blood relatives who have been granted legal custody of the covered servicemember by court decree or statutory provisions, brothers and sisters, grandparents, aunts and uncles, and first cousins, unless the covered servicemember has specifically designated in writing another blood relative as his or her nearest blood relative for purposes of military caregiver leave under the FMLA.

(m) “Serious Injury or Illness” means: 1) in the case of a member of the Armed forces, including a member of the National Guard or reserves, means an injury or illness that a covered servicemember incurred in the line of duty on active duty in the Armed Forces (or existed before the beginning of the member’s active duty and was aggravated by the service in the line of duty on active duty in the Armed Forces) and that may render the servicemember medically unfit to perform the duties of the member’s office, grade, rank, or rating; or 2) in the case of a veteran who was a member of the Armed Forces, including a member of the National Guard or Reserves, means an injury or illness that was incurred by the member in the line of duty on active duty in the Armed Forces (or existed before the beginning of the member’s active duty and was aggravated by service in the line of duty on active duty in the Armed Forces) and that manifested itself before or after the member became a veteran.

D. Employees Eligible For Leave. An employee is eligible for leave if:

(a) The employee has been employed by the City for at least 12 months; and

(b) The employee has been employed by the City for at least 1,250 hours during the 12-month period immediately preceding the commencement of the leave; and

(c) The City directly employs at least 50 full or part-time employees within a 75-mile radius for each working day during each of 20 or more calendar workweeks in the current or preceding calendar year. The workweeks do not have to be consecutive. The phrase “current or preceding calendar year” refers to the calendar year in which the employee requests the leave or the calendar year preceding this request.

E. Amount of Leave. Eligible employees are entitled to a total of 12 workweeks (or 26 workweeks to care for a covered servicemember) of leave during any 12-month period. If FMLA leave qualifies as both military caregiver leave and care for a family member with a serious health condition, the leave will be designated as military caregiver leave first.

F. Minimum Duration of Leave.

(a) If leave is requested for the birth, adoption or foster care placement of a child of the employee, leave must be concluded within one year of the birth or placement of the child. In addition, the basic minimum duration of such leave is two weeks. However, an employee is entitled to leave for one of these purposes (e.g. bonding with a newborn) for less than two weeks duration on any two occasions.

(b) If leave is requested to care for a child, parent, spouse or the employee him/herself with serious health condition, there is no minimum amount of leave that must be taken. However, compliance with the notice and medical certification provisions in this Policy is required.

G. Parents both Employed by the City. If both parents of a child, adoptee, or foster child are employed by the City and are entitled to bonding leave, the aggregate number of workweeks of leave to which both may be entitled may be limited to 12 workweeks during any 12-month period. If both parents of a covered servicemember are employed by the City and are entitled to leave to care for a covered servicemember, the aggregate number of workweeks of leave to which both may be entitled is limited to 26 work weeks during the 12-month period. This limitation does not apply to any other type of leave under this Policy.

H. Employee Benefits While On Leave.

(a) **Group Health Insurance During Unpaid Leave:** Leave under this Policy is unpaid. While on unpaid leave, employees will continue to be covered by the City’s group health insurance for up to 12 weeks each leave year to the same extent that coverage is provided while the employee is on the job. If the employee is disabled by pregnancy, coverage will continue up to four months each leave year. If an employee disabled by pregnancy also uses leave under the CFRA for baby-bonding, the City will maintain her coverage while she is disabled by pregnancy (up to four months or 17 1/3 weeks) and during her CFRA leave (up to 12 weeks).

(b) **Benefit Plans Not Provided through the City’s Group Health Plan During Unpaid Leave Do Continue:** While on unpaid leave, employees will continue to be covered by the City’s benefits plans that are not part of its group health plan for up to 12 weeks each leave year to the same extent that coverage is provided while the employee is on the job.

(c) **Payment of Premiums:** Employees may make the appropriate contributions for continued coverage under the health benefits plans by payroll deductions (if the employee is using his or her paid leave) or direct payments (if the employee is not using his or her paid leave). The City will inform the employee whether the direct payments for premiums should be paid to the carrier or to the City, and the deadlines for paying premiums in order to prevent coverage from being dropped. Employee contribution rates are subject to any changes in rates that occur while employee is on leave.

(d) **Recovery of Premium if the Employee Fails to Return from Leave:** If an employee fails to return to work after his/her leave entitlement has been exhausted or expires, the City shall have the right to recover its share of health plan premiums for the entire leave period, unless the employee does not return because of the continuation, recurrence, or onset of a serious health condition of the employee or his/her family member which would entitle the employee to leave, or because of circumstances beyond the employee's control.

I. **Substitution of Paid Accrued Leaves.** Although family and medical care leave is unpaid, an employee may elect and the City will require an employee to concurrently use all paid accrued leaves during family and medical care leave as described below.

J. **Employee's Right to Use Paid Accrued Leave Concurrently with Family Leave.** An employee may use any earned or accrued paid leave except sick leave for all or part of any unpaid family and medical care leave. An employee is entitled to use sick leave concurrently with family and medical care leave for the employee's own serious health condition or that of the employee's parent, spouse, domestic partner or child.

K. **City's Right to Require an Employee to use Paid Leave when using FMLA/CFRA Leave.** Employees must use and exhaust their accrued leaves concurrently with family and medical care leave to the same extent that employees have the right to use their accrued leaves concurrently with family and medical care leave with two exceptions:

(a) Employees are not required to use paid leave during leave pursuant to a disability plan that pays a portion of the employee's salary while on leave unless the employee agrees to use paid leave to cover the unpaid portion of the disability leave benefit; and

(b) An employee must agree to use accrued sick leave to care for a child, parent, spouse or domestic partner.

L. **City's Right to Require an Employee to Exhaust FMLA/CFRA Leave Concurrently with Other Leaves.** If an employee takes a leave of absence for any purpose which also qualifies under both the FMLA and CFRA, the City will designate that leave as running concurrently with the employee's 12-week FMLA/CFRA leave entitlement. The only exception is for [peace officers and firefighters] who are on paid industrial injury leave.

M. **City's and Employee's Rights if an Employee Requests Accrued Leave without Mentioning FMLA or CFRA.** If an employee requests to utilize accrued vacation leave or other

accrued paid time off without reference to a FMLA/CFRA qualifying purpose, the City may not ask the employee if the leave is for a FMLA/CFRA qualifying purpose. However, if the City denies the employee's request and the employee provides information that the requested time off is for a FMLA/CFRA qualifying purpose, the City may require the employee to exhaust accrued leave as described above.

N. Medical Certification/ Recertification. Employees who request leave must provide a medical certification and/or recertification to support the need for the leave as described below:

(a) **Employee's Own Serious Health Condition:** Employees who request leave for their own serious health condition must provide written certification from the health care provider that contains all of the following: the date, if known, on which the serious health condition commenced; the probable duration of the condition; and a statement that, due to the serious health condition, the employee is unable to work at all or is unable to perform any one or more of the essential functions of his or her position. Upon expiration of the time period the health care provider originally estimated that the employee needed for his/her own serious health condition, the employee must obtain recertification if additional leave is requested.

(b) **Family Member Serious Health Condition:** Employees who request leave to care for a child, parent, domestic partner or a spouse who has serious health condition must provide written certification from the health care provider of the family member requiring care that contains all of the following: the date, if known, on which the serious health condition commenced; the probable duration of the condition; an estimate of the amount of time which the health care provider believes the employee needs to care for the child, parent, domestic partner, or spouse, and a statement that the serious health condition warrants the participation of the employee to provide care during a period of treatment or supervision of the child, parent or spouse. The term "warrants the participation of the employee" includes, but is not limited to, providing psychological comfort, and arranging third party care for the covered family member, as well as directly providing, or participating in, the medical care. Upon expiration of the time period the health care provider originally estimated that the employee needed to care for a covered family member, the employer must obtain recertification if additional leave is requested.

(c) **Servicemember Serious Injury or Illness:** Employees who request FMLA leave to care for a covered servicemember who is a child, spouse, parent or "next of kin" of the employee, must provide written certification from a health care provider regarding the injured servicemember's serious injury or illness. The City will verify the certification as permitted by the FMLA regulations.

(d) **Qualifying Exigency:** The first time an employee requests FMLA leave because of a qualifying exigency, an employee may require the employee to provide a copy of the military member's active duty orders or other documentation issued by the military which indicates that the military member is on covered active duty or call to active duty status in a foreign country, and the dates of the military member's active duty service. A copy of the new active duty orders or similar documentation shall be provided to the City if the need for leave because of a qualifying exigency arises out of a different active duty or call to active duty status

of the same or a different military member. The City will verify the certification as permitted by the FMLA regulations.

O. Time to Provide a Medical Certification. When an employee has provided at least 30 days' notice for a foreseeable leave, the employee must provide a medical certification before the leave begins. When this is not possible, the employee must provide the medical certification to the City within the time frame requested by the City (which must allow at least 15 calendar days after the employer's request), unless it is not practicable under the particular circumstances to do so despite the employee's diligent, good faith efforts.

P. Consequences for Failure to Provide an Adequate or Timely Certification. If an employee provides an incomplete medical certification, the employee will be given a reasonable opportunity to cure any such deficiency. However, if an employee fails to provide a medical certification within the time frame established in this Policy, the City may delay the taking of FMLA/CFRA leave until required certification is provided, or deny FMLA/CFRA protections following the expiration of the time period to provide an adequate certification.

Q. Human Resources Director's Review of the Contents of Medical Certification for Employee's Own Serious Health Condition

(a) Complete and Sufficient: The employee must provide a certification for his or her own serious health condition that is complete and sufficient to support the request for leave. A certification is incomplete if one or more of the applicable entries on the certification form have not been completed. A certification is insufficient if the information on the certification form is vague, ambiguous, or not responsive. If the certification is incomplete or insufficient, the Human Resources Director will give the employee written notice of the deficiencies and seven days to cure, unless a longer period is necessary in light of the employee's diligent, good faith efforts to address the deficiencies.

(b) Authentication and Clarification: After giving the employee an opportunity to cure the deficiencies in a medical certification for the employee's own serious health condition, the Human Resources Director may contact the health care provider who provided the certification to clarify and/or authenticate the certification. "Authentication" means providing the health care provider with a copy of the certification form and requesting verification that the information on the form was completed or authorized by the health care provider who signed the form. "Clarification" means contacting the health care provider to understand the handwriting on the medical certification or to understand the meaning of the response. The Human Resources Director may not ask for additional information beyond that required on the certification form.

R. Second and Third Medical Opinions For Employee's Own Serious Health Condition. If the City has a good faith, objective reason to doubt the validity of a certification for the employee's serious health condition, the City may require a medical opinion of a second health care provider chosen and paid for by the City. If the second opinion is different from the first, the City may require the opinion of a third provider jointly approved by the City and the employee, but paid for by the City. The opinion of the third provider will be binding. The City

must provide the employee with a copy of the second and third medical opinions, where applicable, without cost, upon the request of the employee.

S. Intermittent Leave or Leave on a Reduced Leave Schedule. If an employee requests leave intermittently (a few days or hours at a time) or on a reduced leave schedule for his or her own serious health condition, or to care for an immediate family member with serious health condition, the employee must provide medical certification that such leave is medically necessary. "Medically necessary" means there must be a medical need for the leave and that the leave can best be accomplished through an intermittent or reduced leave schedule. The City may require an employee who certifies the need for a reduced schedule or intermittent leave to temporarily transfer to an alternate position of equivalent pay and benefits that better accommodates the leave schedule.

T. Employee Notice of Leave. Although the City recognizes that emergencies arise which may require employees to request immediate leave, employees are required to give as much verbal or written notice as possible of their need for leave. If leave is foreseeable, at least 30 days' notice is required. In addition, if an employee knows that he/she will need leave in the future, but does not know the exact day(s) (e.g. for the birth of a child or to take care of a newborn), the employee shall inform his/her supervisor as soon as possible that such leave will be needed. For foreseeable leave due to a qualifying exigency, an employee must provide verbal or written notice of the need for leave as soon as practicable, regardless of how far in advance such leave is foreseeable.

U. Reinstatement Upon Return From Leave.

(a) Reinstatement to Same or Equivalent Position: Upon expiration of leave, an employee is entitled to be reinstated to the position of employment held when the leave commenced, or to an equivalent position with equivalent benefits and pay. Employees have no greater rights to reinstatement, benefits, and other conditions of employment than if the employee had been continuously employed during the FMLA/CFRA period.

(b) Date of Reinstatement: If a definite date of reinstatement has been agreed upon at the beginning of the leave, the employee will be reinstated on the date agreed upon. If the reinstatement date differs from the original agreement of the employee and the City, the employee will be reinstated within two business days, where feasible, after the employee notifies the employer of his/her readiness to return.

(c) Employee's Obligation to Periodically Report on His/Her Condition: Employees may be required to periodically report on their status and intent to return to work. This will avoid any delays to reinstatement when the employee is ready to return.

(d) Fitness for Duty Certification: As a condition of reinstatement of an employee whose leave was due to the employee's own serious health condition, which made the employee unable to perform his or her job, the employee must obtain and present a fitness-for-

duty certification from the health care provider stating that the employee is able to resume work. Failure to provide such certification will result in denial of reinstatement.

(e) Reinstatement of “Key Employees”: The City may deny reinstatement to a “key” employee (i.e., an employee who is among the highest paid 10 percent of all employed by the City within 75 miles of the worksite) if such denial is necessary to prevent substantial and grievous economic injury to the operations of the City, and the employee is notified of the City’s intent to deny reinstatement on such basis at the time the employer determines that such injury would occur.

V. Required Forms. Employees must complete the applicable forms to receive family and medical care leave.

Rule 37 **Pregnancy Disability Leave**

A. A pregnant employee shall be entitled to a leave of absence without pay for up to the number of hours she would normally work within four (4) calendar months (one-third of a year or 17 1/3 weeks). For a full-time employee who works 40 hours per week, “four months” means 693 hours of leave entitlement, based on 40 hour per week times 17 1/3 weeks. An employee who works less than 40 hours per week will receive a pro rata or proportional amount of leave. To support a request for Pregnancy Disability Leave, the employee must submit a request for such leave in writing with reasonable advance notice of the need for the leave. The leave must be confirmed in writing, have an agreed-upon specific date of return, and be submitted to the Human Resources Director. The request for Pregnancy Disability Leave must be support by a written certification by the employee’s attending physician, certifying that the employee is disabled from working due to pregnancy, childbirth or a related medical condition; the date on which the employee became disabled by pregnancy, childbirth or a related medical condition; and estimated duration or end date of the leave. During said leave of absence without pay, the employee has the option of using accumulated sick leave, other accrued leave, compensatory time and/or vacation credits, or leave without pay, as appropriate.

B. An employee on Pregnancy Disability Leave may continue to receive any group health insurance coverage that was provided before her leave, beginning on the date the pregnancy disability leave begins and continuing for up to four months in a 12-month period, at the same level and under the same conditions that coverage would have been provided if the employee had continued in employment continuously for the duration of the leave. The City may recover premiums it paid to maintain health coverage, if an employee does not return to work following pregnancy disability leave, unless the reason for the failure to return is a circumstance beyond her control or the use of the separate right to 12 weeks of bonding leave under the California Family and Medical Leave Act.

C. Upon expiration of the approved leave, the employee shall be reinstated to her former position or to a comparable one if the former position is abolished during the period of leave; and the employee would otherwise not have been laid off. A comparable position is one having similar terms of pay, location, job content and promotional opportunities. Prior to the

employee being reinstated, the Department Director may require a statement from the attending physician that the employee is physically capable of resuming the regular duties of her position.

D. Failure to return to work after the authorized leave period causes the employee to lose her reinstatement rights. An employee who plans to take such a leave should give reasonable notice of the date the leave shall commence and the estimated duration of the leave.

E. Employees shall be reasonably accommodated for conditions related to pregnancy, childbirth or related medical conditions if the employee requests an accommodation on the advice of her health care provider.

Rule 38 **Other Leaves**

A. Bereavement Leave. When a full-time regular employee is compelled to be absent from work because of the death of the employee's immediate family member, i.e. employee's spouse, domestic partner, child, stepchild, parent, grandparent, grandchild, brother, sister, mother/father-in-law, son or daughter-in-law, brother or sister-in-law, legal guardian, or custodial child, or the same relatives of a domestic partner, the employee may upon approval of the Appointing Authority, be given up to three (3) days of paid leave, to attend the funeral or memorial services. Additional time off for travel may be granted by the City Manager; provided, however, that such additional time off shall be deducted from any accumulated sick leave, floating holiday or compensatory time off available to the employee, or taken as unpaid leave.

B. Jury Duty/Court Leave.

1. Any employee, other than temporary or seasonal employee who is summoned or required to serve as a juror, shall be entitled to be absent from his/her duties during the period of such service. Under such circumstances, the employee must give reasonable notice to his/her supervisor, pursuant to Labor Code Section 230, that he/she is required to serve in court, and is required to provide a certificate from the court, which shows the dates of attendance and an itemized account of any compensation received for such service.

2. The City may request a deferment of jury duty on behalf of the employee, where that employee's services are essential to the City's operations.

3. The employee shall receive his/her regular rate of pay during such time as was required for court attendance. In order to receive full pay, the employee shall submit to the Finance Department proof of attendance at jury duty for each day served. Any fees or compensation received by reason of such court attendance in connection with jury duty as provided above must be delivered to the Finance Director.

C. Subpoenaed Absence. An employee who is subpoenaed to appear in court in a matter regarding an event or transaction in the course of his/her job duty must give his/her supervisor as much advance notice as is possible. The City shall then determine whether the matter involves an event or transaction in the course of the employee's job duties. If so, such leave to appear in court will be without loss of compensation, and the time spent in court will be considered work time. The City will also offset the amount from pay the employee receives for

witness fees. An employee subpoenaed in court in a matter that the employee initiated and/or unrelated to his/her official capacity as an employee shall not be entitled to receive compensation for time spent related to that matter. The employee may request to receive time off without pay, or if the employee chooses, to use accrued vacation for this purpose.

D. Leave of Absence Without Pay.

1. The City Manager, in his/her unrestricted discretion, may grant a regular non-probationary employee leave of absence without pay or accrual of seniority to attend to his/her private affairs or other matters for a period not to exceed one thousand forty (1,040) hours in duration. No such leave shall be granted except upon written request of the employee, setting forth the reason for the request; and the approval, including the termination date of the leave, shall be in writing. Upon expiration of a regularly approved leave or within a reasonable period of time after notice to return to duty, the employee shall be reinstated in the position held at the time leave was granted. Failure on the part of an employee on leave to report promptly at its expiration or within a reasonable period after notice to return to duty shall be deemed to be discharged. The depositing in the United States mail of a first class letter, postage paid, addressed to the employee's last known address, shall be reasonable notice.

2. Vacation credits, sick leave credits, increases in salary, all other paid leaves, holidays and fringe benefits and other similar benefits shall not accrue during a leave of absence without pay. Except as otherwise required by law, during a leave of absence without pay, the employee shall be responsible for paying the entire cost of his/her own group health insurance, dental, vision, life insurance and long term disability insurance, and shall not accrue excess benefit deferred compensation.

E. Management Leave. Those exempt management employees whose attendance is required at extra hour meetings shall be granted forty (40) hours of management leave per calendar year. Management leave may be taken at any time on approval of the City Manager. Management leave is earned on a calendar year basis, does not accrue, and may not be accumulated by an individual from year to year. . Any accrued management leave balance shall be cleared on December 30 of each calendar year.

F. Military Leave of Absence. Military leave shall be granted in accordance with Federal and State law.

G. Industrial Accident Leave and State Workers' Compensation.

1. In accordance with State law, the City provides insurance coverage for employees who suffer on-the-job injuries. Workers' Compensation benefits provided to injured employees may include medical care; cash benefits, tax free, to replace lost wages; and vocational rehabilitation to help qualified injured employees return to suitable employment.

2. Employees may be provided with up to a maximum of three (3) consecutive regular work days of unchargeable leave following an occupational injury under the Workers' Compensation Act of the State of California.

3. The City desires to allow an injured employee to supplement his/her Worker's Compensation Insurance earnings while the employee is unable to work due to an on-the-job injury. Workers' Compensation Insurance payments are for a maximum of two-thirds (2/3) of the employee's gross salary. The employee may supplement Workers' Compensation Insurance earning with accrued vacation, accrued compensatory time, management leave, floating holiday and/or sick leave in an amount not to exceed his/her normal gross salary when combined with any Workers' Compensation Insurance payments for the same period of time.

4. The employee may expend all accrued sick leave, accrued floating holiday, accrued compensatory time, management leave and vacation leave, until such leave time has been expended. If the employee desires to expend accrued leave as allowed by these Rules, he/she will be considered by the City to be on regular status until all accrued leave time has been expended. When all accrued leave time has been expended, the employee will be on leave without pay for the full period of the temporary disability, unless otherwise authorized or required by law. The employee shall be eligible to receive the amount normally available under the City's group health/life insurance program and shall accrue vacation and sick leave at two-thirds (2/3) of the normal accrual.

5. Application.

a. When an employee is out on an industrial injury, no charge will be made to leave benefits for the first three (3) days. Any payments from Workers' Compensation Insurance will be applied first to repurchase accrued leave time used, next to reimburse the City for the first three (3) regular work days, with any balance to the employee. It is the intent of this policy to provide full benefits where possible and not to allow the employee windfall income.

b. The deduction by the City from the employee's accumulated sick leave shall be limited to the same percentage as the amount due from Workers' Compensation bears to the amount paid by the City. (For example, an employee entitled to twelve dollars [\$12.00] per day from the City received nine dollars [\$9.00] per day from Workers' Compensation, and the difference of three dollars [\$3.00] per day being paid by the City. In deducting from such employee's accumulated sick leave, such deduction shall be made daily on the same basis.)

6 To ensure that every employee receives any Workers' Compensation benefits to which he/she may be entitled, the employee shall:

- a. Immediately report any work-related injury to his/her supervisor;
- b. Seek medical treatment and follow-up care if required;
- c. Complete a written "Employee's Claim Form" (DWC Form 1) and return it to the Human Resources Department; and
- d. Provide the City with a certification of the need for Workers' Compensation disability leave from the health care provider, as well as certification of the eventual ability to return to work from the leave.

7. Upon submission of a medical certification that an employee is able to return to work after a Workers' Compensation covered leave, the employee under most circumstances will be reinstated to the employee's same position held at the time the leave began, or to an equivalent position, if available. An employee returning from a Workers' Compensation covered leave has no greater right to reinstatement than if the employee had been continuously employed rather than on leave. For example, if the employee on Workers' Compensation leave would have been laid off had the employee not gone on leave, or if the employee's position has been eliminated or filled in order to avoid undermining the City's ability to operate safely and efficiently during the leave and no equivalent or comparable positions are available, then the employee would not be entitled to reinstatement.

8. An employee's return depends on the employee's qualifications for any existing openings. If, after returning from a Workers' Compensation disability leave, an employee is unable to perform the essential functions of the employee's job because of a physical or mental disability, the City shall engage in the interactive process with the employee to determine whether a reasonable accommodation may be provided consistent with the requirements of the ADA and/or FEHA.

9. The City provides medical treatment for work-related injuries at a medical facility to be determined by the City.

10. Employees who are injured in a work-related incident will be referred to Avalon Urgent Care for medical treatment for up to thirty (30) days, unless prior to a work-related injury, the City has received from the employee a written notice that the employee wishes to be treated by his/her own physician. In all cases, employees may seek treatment from their own physician after thirty (30) days, should they so desire.

11. The law requires the City to notify its Workers' Compensation Insurance provider of any concerns of false or fraudulent claims. Any person who makes or causes to be made any knowingly false or fraudulent material statement or material misrepresentation for the purpose of obtaining or denying Workers' Compensation benefits or payments is guilty of a felony. A violation of this law is punishable by imprisonment for one (1) to five (5) years, or by a fine not exceeding fifty thousand dollars (\$50,000.00) or double the value of the fraud, whichever is greater, or both. Additional civil penalties may also apply.

H. Unauthorized Leave. Any employee who is absent from work without approved leave, or who has abandoned his/her job, may be subject to termination.

I. Time Off to Vote. If an employee does not have sufficient time outside of working hours to vote in a statewide election, the employee may take enough working time, without loss of pay, to vote. Such time off shall be taken at the beginning or the end of the regular working shift, whichever allows for more free time; and the time taken off shall be combined with the voting time available outside of working hours at the polls to a maximum of two (2) hours combined. When possible, an employee requesting time off to vote shall give the supervisor at least two (2) days' prior notice of the need for such leave.

J. Domestic Violence Leave. Employees who are victims of domestic violence may take leave from work to obtain or attempt to obtain any relief, including, but not limited to: a temporary restraining order, restraining order, or other injunctive relief to help ensure the health, safety, or welfare of the employee or his or her child. Such leave is unpaid unless the employee elects to use paid sick leave, or other accrued paid leaves. An employee may request leave if involved in a judicial action, such as in obtaining restraining orders, or appearing in court to obtain relief to ensure the employee's health, safety or welfare, or that of the employee's child. The City will, to the extent allowed by law, maintain the confidentiality of an employee requesting leave under this provision. The City shall engage in the interactive process with the employee in regards to the length of unpaid leave that may be provided to the employee as a reasonable accommodation. Prior to taking leave under this policy, the employee should provide notice and certification of the need to take such leave. Certification may be sufficiently provided by any of the following:

1. A police report indicating that the employee was a victim of domestic violence;
2. A court order protecting or separating the employee from the perpetrator of an act of domestic violence or other evidence from the court or prosecuting attorney that the employee appeared in court;
3. Documentation from a medical professional, domestic violence advocate, health care provider or counselor that the employee was undergoing treatment for physical or mental injuries or abuse resulting in victimization from an act of domestic violence.

K. School Leave. Any City employee who is a parent, guardian or grandparent having custody of one (1) or more children in kindergarten or grades one (1) through twelve (12), or attending a licensed day care facility, shall be allowed up to forty (40) hours each school year, not to exceed eight (8) hours in any calendar month of the school year, without pay, to participate in activities of the school of his/her child. Such employee must provide reasonable advance notice of the planned absence. The leave is unpaid unless the employee uses vacation and/or compensatory time off. The employee shall provide documentation from the school as verification that the employee participated in school activities on a specific date and at a particular time. If both parents, guardians or grandparents having custody of the child work for the City at the same work site, only the first parent requesting it shall be entitled to leave under this provision.

If an employee who is the parent or guardian of a child facing suspension from school is summoned to the school to discuss the matter, the employee should alert his/her supervisor as soon as possible before leaving work. Pursuant to California Labor Code Section 230.7, no discriminatory action will be taken against an employee who takes time off for this purpose.

SECTION 5: EVALUATION, DISCIPLINE AND GRIEVANCES

Rule 39 **Performance Evaluations**

A. Performance evaluations provide recognition of effective performance and identify areas that need improvement, as appropriate. Performance evaluations may be used as a basis for completion of probation, salary adjustments, promotions, training and discipline. Performance evaluations may also include a period of performance probation associated with a performance improvement plan and heightened evaluation and counseling. Performance probation will not affect an employee's discipline and appeal rights, as provided in these Rules.

B. The Human Resources Director shall provide a method of reporting of individual employee performance which relates to quantity and quality of work, ability, reliability, attendance and other factors. The Human Resources Director shall prescribe forms for such performance evaluations and shall be responsible for assuring that such evaluations are adequate to provide information to both the employee and the City for the purposes set forth in this Rule. An employee must have a "meets job requirements" performance evaluation in order to be eligible for a merit salary increase or promotion. Deficiencies in performance by an employee may result in a decrease in salary, suspension, demotion or dismissal.

Rule 40 **Disciplinary Action**

A. Application. Employees shall be subject to discipline in accordance with the following provisions:

1. Regular Employees. Except as otherwise set forth in these Rules, a regular employee, only for cause, may be demoted, reduced in step, suspended or dismissed.

2. Management Employees. Management Employees are at-will employees of the City, and may be demoted, reduced in step, suspended or dismissed with or without cause, prior notice, right of review or appeal, in accordance with Classification, Recruitment and Appointment, Section 2 herein.

3. Probationary, Temporary and Part-Time Employees. Probationary, temporary and part-time employees are at-will employees who serve at the pleasure of the City Manager and may be demoted, reduced in step, suspended or dismissed with or without cause, prior notice, right of review or appeal. As such, the provisions of Paragraphs 1 and 2 above and 4 below shall not apply to such employees.

4. Contract Employees. The individual employment agreements of the City Manager, Police Chief and Fire Chief, with the City shall have only those rights that are specifically granted under the terms of the separate agreement and those rights provided by State and Federal law. Unless otherwise specified in the employment agreement, a contract employee of the City shall serve at the pleasure of the City Council and shall be considered at-will and may be disciplined and dismissed with or without cause, prior notice, right or review or appeal.

5. This Rule shall not apply to reductions in pay or benefits which are part of a general plan to reduce salaries, wages or benefits, or to a general plan to eliminate positions or reduce services as determined by the City Council.

B. Cause for Disciplinary Action. Discipline is intended to be imposed primarily for corrective purposes and to address deficiencies in work performance. The following is a non-exclusive list of the more common causes for disciplinary action:

1. Willful misrepresentation of any information pertaining to City business or employment;

2. Incompetency, i.e., inability to comply with the minimum standard of an employee's position for a significant period of time;

3. Inefficiency or inexcusable neglect of duty, i.e., failure to perform duties required of an employee within his position;

4. Willful disobedience and insubordination, a willful failure to submit to duly-appointed and acting supervision or to conform to duly-established orders or directions of persons in a supervisory position;

5. Dishonesty;

6. Being under the influence of alcohol or dangerous drugs or narcotics while on duty and/or while using City equipment; or being impaired by alcohol or drugs, while on duty, which could affect the employee's ability to perform his/her job;

7. Excessive absenteeism;

8. Unexcused absence without leave;

9. Abuse of sick leave, i.e., taking sick leave without a doctor's certificate when one is required or misuse of sick leave;

10. Violation of fire and/or safety standards;

11. Unauthorized or improper use of City funds, equipment, records or other property;

12. The conviction, meaning any judicial determination of guilt, of a crime that has a nexus to the employee's job duties;

13. Discourteous treatment of the public or other City employees;

14. Improper political activity, such as campaigning for or espousing the election or non-election of any candidate in national, state, county or municipal elections while

on duty and/or during working hours, or in a City uniform on or off duty; or the dissemination of political material of any kind while on duty and/or during working hours or in a City uniform;

15. Engaging in disorderly conduct, quarreling or fighting, or threatening any member of the public or a City employee;

16. Use of official position for personal advantage;

17. Inattention to duty, tardiness, indolence, carelessness or negligence in the care and handling of City property;

18. Negligence during work or in a City workplace, which could endanger or has endangered the health or safety of that employee or others, or has caused damage to property;

19. Sleeping or malingering while on duty;

20. Violation of established rules and regulations including department policies, rules, regulations or procedures, and these Rules;

21. Violation of any of the provisions of the Municipal Code, ordinances, resolutions or any rule adopted by the City Council relating to conduct in office of persons employed in the competitive service;

22. Conduct unbecoming an officer or employee of the City;

23. Accepting outside employment not specifically authorized by these Rules;

24. Acceptance from any source of a reward, gift or other form of remuneration in addition to regular compensation to an employee for the performance of his/her official duties;

25. Any willful act of conduct undertaken in bad faith, either during or outside of duty hours, which is of such a nature that it causes discredit to the agency, the employee's department or division;

26. Refusal to subscribe to any oath or affirmation, which is required by law in connection with City employment;

27. Working overtime without authorization;

28. Actions incompatible with, or not in the best interests of, public service;

29. Failure to immediately follow safe working practices or failure to report promptly an injury;

30. Theft or personal use of City property or equipment;

31. Sexual or other harassment;
32. Failure to maintain prescribed records (i.e., falsifying, concealing, misusing, mutilation or removing City records or documents);
33. Willful concealment of pertinent information from supervisors;
34. Theft of City property or property of others.
35. Job abandonment

C. Kinds of Disciplinary Actions. The City Manager or his/her designee may take the following disciplinary actions:

1. Minor Discipline.

a. Informal Counseling. For minor infractions, the employee will be counseled. If the situation does not improve within a reasonable period, depending on the seriousness of the infraction, the supervisor may repeat the measure or may use the next step in the discipline progression. The supervisor should keep a written record of the date and substance of the counseling session. The counseling session and memo should include discussion of: a failure of appropriate conduct or performance issue; the performance the employee is to demonstrate in the future; and consequences for failure to correct the behavior or problem. A counseling memo will be retained in the supervisor's file until the completion of the evaluation year, and then documented in the performance evaluation, as the supervisor deems necessary. A counseling memo is not subject to the discipline or discipline appeal procedures described below.

b. Verbal Reprimand. For repeated minor infractions or more serious infractions in the first instance, the employee will be issued a verbal reprimand. A verbal reprimand will be documented in writing and retained in the supervisor's file until the completion of the evaluation year and then documented in the performance evaluation, as the supervisor deems necessary. A verbal reprimand is not subject to the discipline or discipline appeal procedures described

c. Written Reprimand. For more substantial infractions or repeated minor infractions, the employee will be issued a written reprimand. A copy of any written reprimand shall be placed in the employee's personnel file, and a copy provided to the employee, confirming that it has been placed in the personnel file. A record of informal counseling and verbal reprimands may also be included in the employee's personnel file at this time. A written reprimand will be retained in the employee's personnel file, and is not subject to the discipline or discipline appeal procedures described below.

2. No Appeal or Grievance of Minor Discipline. An employee may file a response to minor discipline, which will be placed in his/her personnel file, but has no right of review or appeal, by grievance or otherwise.

3. Major Discipline. Documents related to a major discipline shall become part of the employee's personnel file when the discipline is final.

a. Suspension. For serious infractions of the City Rules or for persistent failure to correct deficiencies noted in informal counseling, and verbal and written reprimands, the employee may be suspended without pay. This action may be taken by the Human Resources Director or the Appointing Authority, by written notice to the employee.

b. Reduction in Pay. For serious infractions of the City's Rules, an employee may be temporarily reduced in pay to a lower step within the salary range, in an amount up to five percent (5%), for a period of up to six (6) months.

c. Demotion. For serious infractions of the City's Rules, an employee may be reduced from a position in one (1) class to a position in another class having a lower salary range.

d. Dismissal. An employee may be discharged from City service for repeated infractions or immediately upon commission of a serious infraction.

4. Discipline During Probationary Period. An employee may be disciplined, without prior notice, right of review or appeal, at any time during the employee's initial probationary period or extended probationary period after hire, reinstatement or re-employment.

5. Discipline of Exempt Employees/Management Employees. Except for a violation of a major safety rule, exempt employees may not be subject to suspensions, temporary demotions (with a beginning and ending date), or temporary reductions in pay, other than in full workweek increments.

D. Pre-disciplinary Procedures. Major discipline shall be taken in compliance with the following procedures, which shall only apply to the City's for-cause employees:

1. Relief from Duty. The City retains the right in any case to relieve an employee immediately from duty, pending investigation or Notice of Discipline, with pay until the effective date of such discipline as determined by the City Manager or his/her designee.

2. Notice of Intent to Discipline. Prior to issuance of a written order of major discipline, as defined above, the appropriate authority shall give the employee a written notice of discipline, which sets forth the following:

a. The intended disciplinary action;

b. The specific charges upon which the proposed action is based. Past disciplinary actions which may have a bearing on the disciplinary action or which support the severity of the penalty shall also be included;

c. A summary of the facts upon which the charges are based;

d. A copy of all written materials, reports or documents upon which the discipline is based;

e. Notice to the employee of his/her right to respond orally and/or in writing to the proposed disciplinary action before said discipline is imposed either by requesting an informal meeting with the designated appropriate authority, or by providing a written response, or both, within 7 calendar days from the date of the notice. A longer notice might be warranted in specific cases because of the volume of material or complexity of the issues involved, but only upon written request and with the approval of the City Manager shall such extended notice be given;

f. The date, time and person before whom the employee may respond; and

g. Notice that failure to respond at the time specified shall constitute a waiver of the right to respond prior to final discipline being imposed.

h. Notice that the employee has a right to have a representative of his/her choice at the informal meeting with the designated appropriate authority.

i. The notice of intent to discipline must be in writing and signed by the Human Resources Director or his/her designee.

3. Additional Pre-disciplinary Response. If a supplemental or amended notice of discipline is given to an employee, the employee is entitled to respond to the supplemental or amended notice as set forth above.

4. Informal Meeting with Employee. If the employee requests an informal meeting with the designated appropriate authority (i.e. a *Skelly* conference), the designated appropriate authority will conduct an informal meeting with the employee, at which the employee has an opportunity to rebut the charges against him or her and present any mitigating circumstances. The designated appropriate authority will consider the employee's presentation before issuing the disciplinary action. The employee's failure to attend the meeting, or to deliver a written response by the date specified in the Notice of Intent to Discipline, is a waiver of the right to respond, and the intended disciplinary action will be imposed on the date specified in the notice.

F. Order of Disciplinary Action. Any response submitted by the employee in response to a Notice of Intent to Discipline will be considered and a determination shall be made by the designated appropriate authority or his/her designee. Upon expiration of the employee's time to respond to the Notice of Intent to Discipline, the appropriate authority shall:

1. Take no disciplinary action; or
2. Modify the intended disciplinary action; or
3. Impose the disciplinary action.

G. Final Order of Disciplinary Action. The final order of disciplinary action shall include the following:

1. The disciplinary action taken;
2. The effective date of the disciplinary action taken;
3. The specific charges upon which the action is based;
4. A summary of the facts upon which the charges are based;
5. The written materials, reports and documents upon which the disciplinary action is based; and
6. A reference to the employee's right to appeal and deadline to request the appeal.

The order shall be signed by the appropriate authority. A copy of the order shall be personally served on the employee or sent by certified mail to the employee's last known address.

Rule 41 **Discipline Appeal Procedure**

A. Notice of Appeal and Request for Hearing. Any for-cause regular employee may appeal a major discipline and request a hearing as provided for in these Rules. These appeal procedures do not apply to at-will employees, who may be disciplined or dismissed with or without cause and without prior notice or appeal. The notice of appeal and request for a hearing must be made in writing and must be filed with the City Manager within ten (10) calendar days of receipt of the order of discipline. If, within the ten (10) calendar day appeal period the employee does not file said appeal, order imposing discipline shall be considered final.

B. Review of Appeal.

1. After receipt of the appeal and request for hearing, the City Manager shall review the appeal and answer to the charges. Hearings will be closed to the public, as allowed by law.

2. The City Manager may elect, at his/her sole discretion, to have the appeal heard by himself/herself or by a hearing officer appointed by the City Manager, who shall present findings and a recommendation to the City Manager for a final disposition.

C. Scheduling the Hearing. The City Manager shall take every appropriate action necessary and reasonable to convene a hearing. All interested parties shall be notified in writing of the day, time and place of the hearing at least ten (10) working days prior to the hearing.

D. Purpose of the Hearing. The purpose of the appeal hearing is to determine the accuracy and the sufficiency of the facts attendant to the disciplinary action. The parties may stipulate to certain facts or evidence that shall be considered without abridgment or adulteration by the hearing body or officers upon which the action was based and any pertinent information that may establish the truth or falsity of such evidence.

E. Pre-hearing Procedure.

1. Subpoenas. The City Manager or the hearing officer(s) is/are authorized to issue subpoenas for the attendance of City employees at the request of either party prior to the commencement of the hearing. Each party is responsible for serving his/her/its subpoenas. After the commencement of the hearing, subpoenas shall be issued by the City Manager or hearing officer(s) only for good cause.

2. Exhibits and Witness Lists. At least seven (7) calendar days prior to the date set for the hearing, each party shall serve upon the other party and submit to the City Manager or hearing officer(s), a list of all witnesses and a list of all exhibits they intend to rely on in the hearing. Employees of the City who are subpoenaed to testify during working hours will be released with pay to appear at the hearing. The City will compensate non-exempt employees who are subpoenaed to testify during non-working hours for the time they actually testify. The appellant shall bear any expense of causing former employees or witnesses to be present.

3. The Parties. The appellant and the City's representative shall attend the hearing. Failure of the appellant, with or without his/her representative, to appear in person at the time and place set for the hearing shall be deemed a withdrawal of the appeal unless otherwise excused by the City Manager.

4. Rights. Each party shall have the right to:

- a. Choose a representative and be represented at the hearing at the party's own expense.
- b. Testify under oath.
- c. Call witnesses and present documentary evidence.
- d. Question all witnesses and examine the evidence.
- e. Argue the matter or issues presented.

5. Conduct and Order of the Proceedings.

a. The hearing need not be conducted in accordance with technical rules relating to evidence and witnesses, but hearings shall be conducted in a manner the hearing officer decides is most conducive to determination of the truth.

b. Any relevant evidence may be admitted if it is the type of evidence on which responsible persons are accustomed to relying upon in the conduct of serious affairs, regardless of the existence of any common law or statutory rules, which might make improper the admission of such evidence over objection in civil actions.

c. Hearsay evidence may be used for the purpose of supplementing or explaining any direct evidence but shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions.

d. The rules dealing with privileges shall be effective to the same extent that they are now or hereafter may be recognized in civil actions.

e. Irrelevant and unduly repetitious evidence may be excluded.

f. The hearing officer shall determine relevancy, weight and credibility of testimony, and evidence, and present his/her recommendations to the City Manager.

g. During examination of a witness, all other witnesses, except the parties, shall be excluded from the hearing upon motion of either party.

h. The names of witnesses and exhibits shall be properly identified and shall be made part of the official record. The hearing body or officer may exclude witnesses not under examination and admonish the witnesses to refrain from discussing the subject of their testimony with other witnesses or potential witnesses. The parties may remain at all times during the proceedings.

i. Witnesses shall be required to testify under oath and affirmation. The oath shall read: DO YOU SOLEMNLY SWEAR (OR AFFIRM) THAT THE TESTIMONY YOU ARE ABOUT TO GIVE IN THIS MATTER SHALL BE THE TRUTH, THE WHOLE TRUTH AND NOTHING BUT THE TRUTH?

6. Record of the Hearing. A record of the proceedings, either electronically or by a court reporter, shall be made and maintained by the City. The City may choose to make a mechanical or electronic record of the proceedings. Costs of preparing transcripts shall be borne by the requesting party.

7. Confidentiality. The hearing shall be closed to the public and shall not be a public record unless required by law.

8. Adjournment. The hearing may be adjourned or recessed for good cause, upon the request of a party, or hearing officer.

9. Closing the Hearing. The hearing officer shall inquire if either side has anything further to offer. Either party may request to submit a written brief for consideration. The hearing body or hearing officer shall determine the deadline for submitting briefs and the page limit for the briefs. After receipt of closing briefs and/or closing argument, the hearing

body or hearing officer shall close the hearing. The hearing officer shall report their written recommendation to the City Manager and the parties within sixty (60) days after the closing of the hearing, unless an extension is stipulated by the parties.

10. Written Findings and Recommended Decision. If a hearing officer is used, the hearing body or hearing officer shall render written findings and recommendations. If the City Manager hears the case, he/she shall render written findings and a decision. If the City Manager renders the decision, the findings and decision shall conform to this Rule. A finding must be made on each charge and/or material issue. The recommended decision may recommend the sustaining, modifying or rejecting of any or all of the charges and/or level of discipline invoked against the employee.

11. Findings and Decision of City Manager. The findings and decision of the City Manager are final and there is no internal process for reconsideration of the findings and decision. The City will mail a copy of the written findings and decision, along with a proof of service of mailing that confirms that each of the parties and each of the parties' representatives were mailed the final written findings and decision. It shall be the responsibility of the employee to inform the City of his/her mailing address. A copy of the decision shall also be provided to the hearing officer.

12. Judicial Review.

a. Judicial review of the findings and decision of the City Manager may be had pursuant to Section 1094.5 of the California Code of Civil Procedure.

b. Pursuant to Section 1094.6 of the California Code of Civil Procedure, the petition for writ of mandate appealing the City's decision must be filed not later than the ninetieth (90th) day following the date of the proof of service of mailing of the findings and decision of the City Manager.

Rule 42 **Grievance Procedures**

A. General Provisions and Definitions.

1. A grievance is an alleged violation of a specific provision of these Rules. Nothing contained in these Rules shall be construed to prevent any individual employee(s) from freely discussing a problem with any supervisory official, department head, Appointing Authority or the City Manager, and having it resolved without filing a grievance as provided in this Rule. The following grievance procedure applies to all City employees covered under these Rules, unless: the employee is covered by a grievance procedure in a MOU; another dispute resolution procedure applies to the dispute; or a discipline policy and procedure applies.

2. A grievance procedure has been established for the purpose of promoting improved employer/employee relations by establishing an appropriate means for determining claims by an employee or employees that the City has violated, misrepresented or misapplied an obligation to the employee as that obligation is expressed and written in these Rules. The grievance procedure established herein is intended to provide a method of resolving such claims

as closely as possible to the point of origin, as informally as possible. The grievance procedure shall not be used for the following:

- a. For the purpose of resolving complaints, requests or changes in wages, hours and working conditions;
- b. To challenge the content of employee evaluations or performance reviews;
- c. To challenge a reclassification, layoff, transfer, denial of reinstatement or denial of a merit increase;
- d. To challenge cases of any discipline, including oral counseling, verbal reprimand, written reprimand, reduction in pay, demotion, suspensions or discharge, or in lieu of the disciplinary processes established by these Rules;
- e. To challenge violation of law or past practice; or
- f. To challenge examinations or appointment to positions.

3. The time requirements established herein are mandatory unless otherwise agreed to by the parties in writing in specific cases.

4. The grievance procedure is not intended to be a substitute for meeting and conferring or meeting and consulting over matters of general interest pursuant to the Meyers-Milias-Brown Act, California Government Code Sections 3500 et seq.

5. The grievant is the employee or group of employees adversely affected by an act or omission of the employer within the context of these Rules. An employee or group of employees may choose to be represented at any stage of the grievance procedure by a person or representative of his/her choice.

6. Occurrence shall mean the date an event happened or failed to happen, as the case may be, or the date the affected employee knew or with reasonable prudence should have known the event happened or failed to happen, depending on the specific facts presented.

7. Failure of the grievant to comply with the time limits of the grievance procedures constitutes an abandonment of the grievance. Failure of the City to comply with the time limits of the grievance procedures allows the grievant to advance the grievance to the next step. The parties may extend time limits by mutual written agreement in advance of a deadline.

B. Grievance Procedure Steps.

1. STEP 1: Supervisor.

a. The employee shall orally inform his/her immediate supervisor of the grievance within five (5) working days of the occurrence giving rise to the grievance. No formal format is required for the Step 1 grievance.

b. At least one (1) conference shall be held between the employee and the immediate supervisor within seven (7) calendar days after the employee has expressed the grievance. The immediate supervisor shall orally advise the employee of the decision within seven (7) calendar days after the employee has expressed the grievance. If the grievance involves the immediate supervisor, the employee may take the grievance to the immediate supervisor of the employee's supervisor. If there is no intermediate supervisor, the employee may skip Step 1 and take the grievance directly to the Department Director, following the procedures set forth in Step 2.

2. STEP 2: Department Director.

a. If the grievance is not resolved in Step 1, the employee shall submit a written grievance to the Department Director not later than five (5) working days following the employee's receipt of the immediate supervisor's decision on the Step 1 grievance. The written grievance shall include:

- (1) The specific section of the Rules allegedly violated;
- (2) The specific act or omission, which gave rise to the alleged violation;
- (3) The date or dates on which the violation occurred;
- (4) What documents, witnesses or other evidence support the employee's position; and
- (5) The remedy requested.

b. If the grievance contains the required information, the Department Director shall review the grievance and render a written decision within fourteen (14) calendar days from the receipt of the written grievance. If the grievance does not contain the required information, the Department Director shall return the grievance to the employee within five (5) working days of his/her receipt of the written grievance. An employee whose incomplete grievance has been returned to him/her shall have three (3) working days, after it is returned to him/her, to complete it and resubmit the written grievance to the Department Director.

3. STEP 3: City Manager.

a. If the grievance is not resolved in Step 2, the employee shall submit the grievance in writing to the City Manager not later than five (5) working days following the employee's receipt of the Department Director's decision on the Step 2 grievance. The City Manager shall review the matter and render a written decision within fourteen (14) calendar days from the receipt of the written grievance at Step 3. If a grievance involves a

Department Director, the grievant may submit the grievance initially at Step 3, following the procedures set forth in Step 2. The decision of the City Manager shall be final.

SECTION 6: POLICIES AND PROCEDURES

Rule 43 **Policy Against Harassment**

A. Policy. The City is strongly committed to prohibiting and preventing harassment, discrimination and retaliation in the workplace, and providing a procedure for investigating and resolving internal complaints regarding such conduct.

1. The City has zero tolerance for any conduct that violates this Policy. Conduct need not arise to the level of a violation of law to violate this Policy. Instead, a single act can violate this Policy and provide grounds for discipline or other appropriate sanctions. The City encourages all covered individuals to report any conduct that is believed to violate this Policy as soon as possible. Individuals found to have retaliated in violation of this Policy will be subject to appropriate sanction or disciplinary action, up to and including dismissal.

2. Harassment, discrimination or retaliation against a covered individual, as defined herein, is prohibited and will not be tolerated. This Policy prohibits harassment and discrimination because: (a) of an individual's protected classification; (b) of the perception that an individual has a protected classification; or (c) the individual associates with a person who has or is perceived to have a protected classification. Similarly, this policy prohibits retaliation against any individual who files and supports a complaint involving a violation of this Policy, participates in the complaint resolution process, or associates with a person who makes a complaint, or similar protected activity.

3. Disciplinary action, up to and including dismissal, or other appropriate sanction, will be instituted for any sustained finding of prohibited behavior.

B. Covered Individuals and Scope.

1. This Policy applies to all City employees regardless of rank or title, while they are on any City property or premises, and/or while performing services on behalf of or for the City.

2. This Policy also applies to City elected and appointed officials, job applicants, vendors, contractors, business associates, interns, volunteers, and members of the public, who are on any City property or premises, and/or performing services on behalf of or for the City pursuant to contract or other arrangements. Except where the context requires otherwise, all references to employees in this Policy shall include non-employees specified in this subsection.

3. This Policy applies to all terms and conditions of employment, internships, and volunteer opportunities, including, but not limited to, selection, hiring, placement, promotion, disciplinary action, layoff, recall, transfer, leave of absence, compensation, and training.

C. Definitions.

1. Protected Classification. This Policy prohibits harassment, discrimination and retaliation because of an individual's protected classification. "Protected classification" includes race, religion creed, color, national origin, ancestry, citizenship status, sex, gender, gender identity, gender expression, sexual orientation, military or veteran status, marital status, pregnancy, age (over 40), medical condition, genetic characteristics or information, physical or mental disability and any other statutorily protected classifications.

2. Protected Activity. This Policy prohibits harassment, discrimination and retaliation because of an individual's protected activity. "Protected activity" includes making a request for or receiving an accommodation for a disability; making a request for or receiving accommodation for religious beliefs or practices; making or supporting a complaint under this Policy; opposing violations of this Policy; or participating in an investigation pursuant to this Policy.

3. Discrimination. This Policy prohibits treating covered individuals differently because of the individual's protected classification, actual or perceived; because the individual associates with a person who is an actual or perceived member of a protected classification; or because the individual participates in a protected activity as defined in this Policy.

4. Harassment. "Harassment" includes, but is not limited to, the following types of behavior that is taken because of a covered individual's actual or perceived membership in a protected classification:

a. Speech, including but not limited to: epithets, derogatory comments or slurs, or propositioning on the basis of a protected classification. This includes inappropriate comments on appearance, including dress or physical features, or dress consistent with gender identification, or race, sexual, or ethnicity-oriented stories or jokes.

b. Physical acts, including but not limited to: assault, impeding or blocking movement, offensive touching, or physical interference with normal work or movement. This includes pinching, grabbing, patting, propositioning, leering or making explicit or implied job threats or promises in return for submission to physical acts.

c. Visual acts, including but not limited to: derogatory gestures, posters, notices, e-mails, bulletins, cartoons, pictures, or drawings related to a protected classification (including social media postings, texts, videos sent via email).

d. Unwanted sexual advances, including but not limited to: requests for sexual favors, or unwelcome/offensive written, verbal, physical and/or visual contact with sexual overtones, when submission to or rejection of the conduct is used as the basis for employment decisions, or where the conduct is intended to or actually does unreasonably interfere with an individual's work performance or create an intimidating, hostile or offensive working environment.

5. Guidelines for Identifying Harassment.

a. Harassment includes any conduct which would be "unwelcome" or "offensive" to an individual of the recipient's same protected classification and which is taken because of the recipient's protected classification.

b. It is no defense that the recipient of harassment appears to have voluntarily "consented" to the conduct at issue. A recipient may not protest for many legitimate reasons, including the need to avoid being insubordinate or to avoid being ostracized.

c. Simply because no one has complained about a joke, gesture, picture, physical contact, or comment does not mean that the conduct is welcome. Harassment can evolve over time. Small, isolated incidents might be tolerated up to a point. The fact that no one is complaining now does not preclude someone from complaining if the conduct is repeated in the future.

d. Even visual, verbal, or physical conduct between two individuals who appear to welcome the conduct can constitute harassment of a third individual who observes the conduct or learns about the conduct later. Conduct can constitute harassment even if it is not explicitly or specifically directed at an individual.

e. Conduct can constitute harassment even if the individual engaging in the conduct had no intention to harass (e.g., gifts, over attention, or endearing nicknames). Even well-intentioned conduct can violate this Policy if the conduct is directed at or implicates a protected classification, and if a reasonable person of the recipient's same protected classification would find it offensive or unwelcome.

6. Retaliation. Retaliation occurs when adverse conduct is taken against a covered individual because of the individual's protected activity as defined in this Policy. "Adverse conduct" may include but is not limited to: disciplinary action, counseling, taking sides because an individual has reported harassment or discrimination; spreading rumors about a complainant or about someone who supports or assists the complainant; shunning or avoiding an individual who reports harassment or discrimination; or making real or implied threats of intimidation to prevent or deter an individual from reporting harassment or discrimination.

D. Responsibilities.

1. Directors, managers, supervisors and other City management and supervisory personnel are responsible for compliance with this Policy and each of the following:

a. Informing employees of this Policy.

b. Modeling appropriate behavior in conformity with this Policy.

c. Taking all steps necessary to prevent harassment, discrimination and retaliation from occurring.

d. Receiving complaints in a fair and serious manner, and documenting steps taken to resolve complaints.

e. Monitoring the work environment and taking immediate appropriate action to stop potential violations, such as removing inappropriate pictures or correcting inappropriate language.

f. Following up with those who have complained to ensure that the behavior has stopped and that there are no reprisals.

g. Informing those who complain of harassment and/or discrimination of their option to contact the U.S. Equal Employment Opportunity Commission (“EEOC”) or the California Department of Fair Employment and Housing (“DFEH”) regarding alleged violations.

h. Assisting, advising or consulting with Human Resources and/or employees of other City department(s) regarding this Policy.

i. Assisting in the investigation of complaints when authorized, and, if the complaint is substantiated, recommending appropriate corrective or disciplinary action in accordance with the City’s Personnel Rules, up to and including dismissal.

j. Implementing appropriate disciplinary and remedial actions.

k. Reporting potential violations of this Policy of which he or she becomes aware to Human Resources, regardless of whether a complaint has been submitted to any City department or management personnel.

l. Participating in periodic training and scheduling employees for training.

Supervisory personnel who are aware of ongoing harassment, discrimination and/or retaliation, as defined in this Policy, but do not take responsible appropriate steps, as set forth above, shall be subject to appropriate disciplinary action, up to and including dismissal.

2. All employees are responsible for compliance with this Policy and for each of the following:

a. Treating all individuals in the workplace or at worksites with respect and consideration.

b. Modeling appropriate behavior in conformity with this Policy.

c. Participating in periodic training.

d. Fully cooperating with the City’s investigation by responding fully and truthfully to all questions posed during the investigation.

e. Taking no actions to influence any potential witness while the investigation is ongoing.

f. Reporting any act he or she believes in good faith constitutes harassment, discrimination or retaliation as defined in this Policy to his/her supervisor, department head or Human Resources.

3. While the City vigorously defends an individual's right to work in an environment free of harassment, discrimination and retaliation, the City also recognizes that knowingly false accusations can have serious consequences. Accordingly, any individual who is found, through the City's investigation, to have knowingly and falsely accused another person of harassment, discrimination or retaliation will be subject to appropriate disciplinary action, up to and including dismissal.

E. Complaint Procedure.

1. A covered individual who believes he or she has been subjected to discrimination, harassment or retaliation may make a complaint, orally or in writing, to any of the individuals listed below without regard to any chain of command.

- a. Immediate supervisor
- b. Any supervisor or manager within or outside the department
- c. Department Director
- d. Human Resources Director or designated representative

2. Any supervisor, manager or director who receives a harassment, discrimination or retaliation complaint shall immediately notify the Human Resources Director. A complaint accusing the Human Resources Director of harassment, discrimination or retaliation shall be reported to the City Manager.

3. An individual has the option to report harassment, discrimination or retaliation to the DFEH or the EEOC. These administrative agencies offer legal remedies and a complaint process.

The nearest offices are listed in the government section of the telephone book or employees can check the posters that are located on the City's bulletin boards for office locations and phone numbers.

F. Investigation.

1. Upon receipt of notification of a harassment, discrimination or retaliation complaint, the Human Resources Director shall:

- a. Authorize and supervise or conduct an investigation of the complaint. The Human Resources Director shall determine who shall conduct the investigation and/or authorize whatever investigation he or she deems necessary in accordance with this Policy. The investigation will generally include interviews with: (a) the complainant; (b) the accused; (c) witnesses; and (d) other persons who may have relevant knowledge concerning the allegations in the complaint.

b. Review the factual information gathered through the investigation to determine whether the alleged conduct did occur and whether there has been a violation of this Policy. In doing so, the Human Resources Director shall consider all the factual information gathered through the investigation, the totality of the circumstances, the nature of the conduct, and the context in which the alleged incidents occurred.

c. Report a summary of the determination as to whether this Policy has been violated to appropriate persons. If discipline or sanctions are imposed, the level of discipline or sanctions will not be communicated to the complainant.

d. If it is determined that such conduct in violation of this Policy has occurred, the Human Resources Director shall take or recommend prompt and effective remedial action. The remedial action will be commensurate with the severity of the offense.

e. Take reasonable steps to protect the complainant(s), or other individuals involved in the investigation, from harassment, discrimination and retaliation.

2. If a complaint of harassment, discrimination and/or retaliation is against the Human Resources Director, City Council Members, Commissioners, or other City officials, the City Manager shall be responsible for investigating such complaint in accordance with the process set forth immediately above. If a complaint of harassment, discrimination and/or retaliation is against the City Manager, the City Attorney shall be responsible for investigating such complaint in accordance with the process set forth immediately above.

3. The City takes a proactive approach to potential violations of this Policy and will conduct an investigation if its officers, supervisors, or managers become aware that harassment, discrimination or retaliation may be occurring, regardless of whether a recipient of the conduct (victim) or a third party reports a potential violation.

G. Confidentiality.

1. Efforts will be made to the greatest extent allowed by law to maintain confidentiality of complaints made under this Policy. Complete confidentiality cannot occur, however, due to the need to fully investigate complaints and take effective remedial action. Disclosure of a completed investigation report may be necessary to support a disciplinary action, to defend the City in adversarial proceedings, to take effective remedial action, or to comply with applicable laws and court orders.

2. An employee who is interviewed during the course of an investigation is prohibited from attempting to influence any potential witness while the investigation is ongoing. An employee may discuss his or her interview with a designated representative.

H. Dissemination of Policy. All employees will receive a copy of this Policy when they are hired. The Policy may be updated from time to time and redistributed with a form for the employee to sign and return acknowledging that the employee has received, read, and understands this Policy.

Rule 44 **Workplace Violence Policy**

A. Statement of Policy. The City is strongly committed to providing a safe and secure workplace and has adopted this policy regarding workplace violence.

B. Objectives.

1. To ensure all workplace threats and vocative behavior are addressed promptly.

2. To ensure the level of physical/facility security in City workplaces is sufficient to protect the health and safety of City employees.

3. To ensure that appropriate disciplinary action is taken for behavior prohibited under this policy.

C. Acts or Threats of Violence Defined. “Threats or acts of violence” include conduct against persons or property that are sufficiently severe, offensive or intimidating to alter the employment conditions, or to create a hostile, abusive or intimidating work environment for a City employee or employees. Although the City has a strong commitment to customer service, the City will not permit employees to be subjected to verbal or physical abuse. General examples of prohibited workplace violence include, but are not limited to:

1. Threatening to harm an individual or his/her family, friends, associates or their property.

2. Making harassing or threatening telephone calls, letters or other forms of written or electronic communications.

3. Intimidating or attempting to coerce an employee to commit wrongful acts that would affect the business interests of the City.

4. Harassing surveillance, also known as “stalking,” the willful, malicious and repeated following of another person and making a credible threat with intent to place the other person in reasonable fear of his/her safety.

5. Making a suggestion or otherwise intimating that an act to injure person(s) or property is “appropriate.”

6. Possession of firearms, weapons or any other dangerous device(s) on City property by anyone other than safety personnel who are governed by their own policies and procedures.

7. Use of personal or City-issued tools in a threatening manner toward a City employee or other individual.